

Women in Law and Lawmaking in Nineteenth and Twentieth-Century Europe

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ASHGATE

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Published by
Ashgate Publishing Limited
Wey Court East
Union Road
Farnham
Surrey, GU9 7PT
England

Ashgate Publishing Company
110 Cherry Street
Suite 3-1
Burlington, VT 05401-3818
USA

www.ashgate.com

British Library Cataloguing in Publication Data

A catalogue record for this book is available from the British Library.

The Library of Congress has cataloged the printed edition as follows:

Women in law and lawmaking in nineteenth and twentieth-century Europe / edited by Eva Schandevyl.

pages cm

Includes bibliographical references and index.

ISBN 978-1-4094-4873-0 (hardcover) -- ISBN 978-1-4094-4874-7 (ebook) -- ISBN 978-1-4724-0348-3 (epub) 1. Women lawyers--Europe--History. 2. Practice of law--Europe--History. I. Schandevyl, Eva, 1974- editor of compilation.

KJC3770.W66 2014

340.082'094--dc23

2014002735

ISBN 9781409448730 (hbk)

ISBN 9781409448747 (ebk - PDF)

ISBN 9781472403483 (ebk - ePUB)



Printed in the United Kingdom by Henry Ling Limited,
at the Dorset Press, Dorchester, DT1 1HD

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Legal Cultures in Transition: The Role of Italian Jurist Women

Maria Rita Bartolomei

Research Objective and Working Method

Feminist legal theory starts from the fact that laws have, until recently, been made, interpreted and enforced by men and for men.¹ Yet, over the last 30 years in the Western world we have witnessed such profound gender-related and social-economic changes that we are urged to consider the increasing importance of women's role in transforming legal practice and legal culture.²

Differences between men and women in cultural terms and on the labour market have drastically diminished in the last decades. In Italy, the number of qualified female lawyers has more than doubled since 1995. Today, women represent there over 50 per cent of all lawyers, while in 1982 they counted only 6 per cent.³ In 1965, at the time of their entry in the judiciary, women judges represented less than 1 per cent. At present in Italy nearly half of all new judges are women, as almost one-third of the notaries are. Moreover, figures indicate that there are now more female students in the law faculties, and more law graduated and qualified women under the age of 45 than men.⁴

Some scholars stress that the massive entry of women into the legal profession stems less from women's increasing gender awareness and empowerment than from structural contingencies, that is from demographic and economic changes

¹ Joan Brockman, *Gender in the Legal Profession: Fitting Or Breaking the Mould* (Vancouver, 2001); Virginia Drachman, *Sisters in Law: Women Lawyers in Modern American History* (Cambridge MA, 1998); Mary Jane Mossman, *The First Women Lawyers: A Comparative Study of Gender, Law and the Legal Professions* (Oxford, 2006).

² Although 'legal culture' is not an easy concept to define, I understand it as the ideas, values and attitudes people in society share with regard to the law and the legal system; legal culture is what determines the impact of legal norms on society (Lawrence Friedman, 'Is There a Modern Legal Culture?', *Ratio Juris*, 7/2 (1994): pp. 117–31).

³ Centro Studi Investimenti Sociali, *Dopo le buone teorie, le proposte. Programma di ricerca per le donne avvocato, Census Report 2010*, <http://www.aiga.it>.

⁴ Consiglio Nazionale Forense (CNF) and Consiglio Superiore della Magistratura (CSM), *Le donne nelle professioni legali di domani* (National Meeting Rome, 11 June 2010).

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transforming the productive labour system and family relations.⁵ It is however beyond doubt that the increasing participation of women in the labour market has fostered the extraordinary rise of worldwide access to legal knowledge and legal professionalism. Parallel to this, a growing body developed of what might broadly be described as feminist legal scholarship.⁶

Feminist authors seek to identify the ways in which the legal system jeopardizes women, and they consequently recommend remedial legal reforms. The feminist areas of criticism in legal matters can be summarized in four categories: equal treatment; recognition of difference; dominance and subordination; anti-essentialism and intersectionality.⁷

Feminist legal theory has generated a lively debate on the necessity of legal regulation in improving women's position in society by focusing not only on discrimination covered by existing legislation, but also on forms of social behaviour which are discriminatory and unfavourable to women.⁸ Yet, the deficiency should be noted of empirical research and of theoretical approaches acquiring a deep and meaningful understanding of the institutional impediments to women's success in the practice of law;⁹ the challenges that jurist women face in balancing work and family;¹⁰ and of discriminations and 'glass ceiling'¹¹ mechanisms.

⁵ Vittorio Olgiati, 'Donne & lavoro. L'inclusione della differenza di genere nelle attività economiche e professionali', *I Quaderni dell'Istituto di Sociologia*, 3 (Università di Urbino, 2006): pp. 1–72.

⁶ Nancy Levit and Robert R.M. Verchick, *Feminist Legal Theory: A Primer* (New York, 2006); Alison Young and Nina Puren, 'Signifying Justice: Law Culture and the Question of Feminism', *Australian Feminist Law Journal*, 13 (1999): pp. 3–12.

⁷ The anti-essentialist or intersectionality approach rejects the idea that gender issues in the law can be considered in isolation. Human differences such as race, sexual orientation, class and religion inseparably intersect with gender and should thus always be considered together in (feminist legal) theory as well as in practice. See: Ann Bartow, *Legal Theory Lexicon 061: Feminist Legal Theory*, http://lsolum.typepad.com/legal_theory_lexicon/2006/11/legal_theory_le.html.

⁸ Sandra Fredman, *Discrimination Law* (Oxford, 2002); John Hagan and Fiona Kay, *Gender in Practice: A Study of Lawyers' Lives* (Oxford, 1995); Mona Harrington, *Women Lawyers: Rewriting the Rules* (New York, 1994).

⁹ Ulrike Schultz and Gisela Shaw (ed.), *Women in the World's Legal Professions* (Oxford, 2003).

¹⁰ Deborah L. Rhode, 'Balanced Lives: Changing the Culture of Legal Practice' (Stanford, 2001).

¹¹ Jacquelyn Slotkin and Samantha Goodman (ed.), *It's Harder in Heels: Essays by Women Lawyers Achieving Work-Life Balance* (Lake Mary, FL, 2007); Hilary Sommerland and Peter Sanderson, 'Professionalism, Discrimination, Difference and Choice in Women's Experience in Law Jobs', in Philip Thomas (ed.), *Discriminating Lawyers* (London, 2000), pp. 155–82.

In this chapter, I will examine how gendered legal expertise greatly contributes to developing new jurisdictional patterns that force us to redefine the parameters of the public and the private spheres. Some Italian jurist women's associations have indeed played an important role in the legal qualification of domestic violence against women and children as an attempt to violate their human dignity, and therefore their human rights. I will show how these jurist women, interacting with and practising in law firms, courts and other legal fields, transform themselves, their working space and the wider society of which they are part.

Based on current literature and adopting a rich mixture of qualitative methodologies as participant observation and ethnographic interviewing, this research work has been carried out in different periods of time starting from January 2008. Fieldwork included: 1. spending some periods of participant observation in 10 law courts that operate in the Central Eastern Marche region of Italy; 2. collecting quantitative data, that is a sample of 30 court cases relating to domestic violence brought to court between 2008 and 2010; 3. in-depth interviews with female lawyers (65), male lawyers (20), clients (40) and judges (15), all of them living in the Marche region; 4. a life history collection, that is 30 life stories of abused wives and daughters.

The interviewed lawyers, either women or men, have been selected from those living and practising in the Marche region within seven legal associations corresponding to the courts of Ancona, Ascoli Piceno, Camerino, Fermo, Macerata, Pesaro and Urbino. Most of the female lawyers are members of women lawyers associations such as Associazione Donne Avvocato di Fermo (ADAF) and Associazione Donne Avvocato del Piceno (ADAP), the former at Fermo Law Court, the latter at Ascoli Piceno Law Court. The selection of lawyers has been quite easy: I initially found knowledgeable informants through friends and colleagues, then through contacts given by other interviewees by means of so-called 'snowball sampling'. Access to the abused women has been a little more difficult. In order to explore their ideas on the law, I assembled a life history collection and sometimes, when I felt it relevant, I offered my thoughts and experiences for comparison.

The interviewees were encouraged to provide elaborate answers and to produce 'thick descriptions' of their views on the topic. According to the 'narrative of non-neutral interviewing' – that is dominant in contemporary methodology texts, and assumes that face-to-face interviews are locally and collaboratively produced¹² – it is important for the interviewer to be able to

¹² Tim Rapley, 'Interviews', in Clive Seale et al. (ed.), *Qualitative Research Practice* (Thousand Oaks, 2004), pp. 15–33.

try to 'communicate trust, reassurance and even likeableness'.¹³ For this reason, I always arranged interviews with abused women in private spaces without too much outside interaction.

Provisional findings appear to confirm some interesting trends. First of all, I witnessed an unquestionable widening of law and legality horizons in two different concurring ways. On the one hand, jurist women reshape the meaning of legality as they deploy legal meanings in new settings. On the other hand, legal knowledge provides cultural schemes that women use not only at work but also to understand their everyday experience.

To analyse the first aspect, I have relied on the framework elaborated by Patricia Ewick and Susan Silbey to explore legal consciousness.¹⁴ Their study identifies three common narratives about law in people's thinking: the idea of the law being magisterial and remote – what they call 'before the law'; the view of the law as a game with rules that can be manipulated to one's advantage – what they call 'with the law'; the description of law as an arbitrary power that is actively resisted – what they call 'against the law'.¹⁵ As far as the second aspect is concerned, I will discuss women's empowerment through law and how this entails different social outcomes.

Presenting individual experiences and case studies, this study aims to give a glimpse of women lawyers' attitudes such as they emerge from talks, accounts and statements of judges, clients and abused women.

Without of course settling all debates on the subject, this chapter offers, from an anthropological perspective, a better understanding of the multiple ways in which gender and law can interact.¹⁶

Domestic Violence in Italy

In recent years, there has been a greater understanding of the problem of domestic violence, its causes and consequences, and an international consensus has developed on the need to deal with the issue. The Convention on the Elimination of All Forms of Discrimination against Women adopted

¹³ Stephen Ackroyd and John Hughes, *Data Collection in Context* (Harlow, 1992), p. 108. To have some level of control on the interaction as a whole, I decided to use an interview guide in dealing with the various topics. The content of the list of questions varies in relation to the different categories of interviewees.

¹⁴ Patricia Ewick and Susan Silbey, *The Common Place of Law* (Chicago, 1998). The authors collected accounts from hundreds of people from diverse backgrounds in order to investigate the different ways in which people use and experience the law.

¹⁵ *Ibid.*, pp. 47–9.

¹⁶ Patricia Frazier and Jennifer Hunt, 'Research on Gender and the Law: Where Are We Going, Where Have We Been?', *Law and Human Behaviour*, 22/1 (1998): pp. 1–16.

by the United Nations General Assembly in 1979, the Convention on the Rights of the Child in 1989, and the Platform for Action adopted at the Fourth International Conference on Women in Beijing in 1995 all reflect this historically grown consensus. Yet, progress has been slow and effective strategies to address domestic violence are still being defined. As a result, women worldwide continue to suffer, with estimates varying from 20 to 50 per cent from country to country.¹⁷

Although in developing countries women are more susceptible to abuse of all kinds, domestic violence is very common and an important cause of mortality for women in every country. While from the outside Italy looks like a highly civilized country, the problem has been a major concern here, where attacks by jealous husbands – passionate, hot-blooded and possessive – are rarely regarded as crimes. Yet the latest figures suggest that in 2006 almost 7 million women were victims of violence and that in Italy at least one in four women experiences domestic abuse over their lifetime.¹⁸

In Italy, the Osservatorio Nazionale sulla Violenza Domestica (ONVD) adopts the definition of domestic violence given by the World Health Organization (WHO) in 1996: any act of 'gender-based violence that results in, or is likely to result in, physical, sexual or mental harm or suffering to women, including threats of such acts, coercion or arbitrary deprivation of liberty, whether occurring in public or in private life'.¹⁹ Domestic violence – also known as domestic abuse, spousal abuse, battering, family violence²⁰ and intimate partner violence (IPV) – is defined by the ONVD as a pattern of abusive behaviour by one partner against another in an intimate relationship such as marriage, dating, family or cohabitation. Partners may be married or not, heterosexual, gay or lesbian. Although both men and women can be abused, most victims are women. Children in homes where there is domestic violence are more likely to be abused and/or neglected. Even if a child is not physically harmed, they may have emotional and behaviour problems.

All forms of domestic violence come from the abuser's desire for power and control over other family members or intimate partners. Although every situation is unique, there are common factors involved. Research shows that domestic violence can affect any woman, regardless of race, age, sexual orientation, religion, social class, disability or lifestyle. It can take many forms,

¹⁷ Unicef/Innocenti Research Centre, *Innocenti Digest* 6, June 2000, <http://www.unicef-irc.org/publications/pdf/digest6e.pdf>.

¹⁸ Italian National Institute of Statistics, *Report 2007*, <http://www3.istat.it>.

¹⁹ <http://www.onvd.org>; World Health Organization, *Violence against Women Act* (FRH/WHO/96.27) (Geneva, 1996).

²⁰ Family violence is a broader definition, often used to include child abuse, elder abuse and other violent acts between family members.

including physical aggression or assault,²¹ sexual abuse,²² economic deprivation,²³ emotional and psychological abuse.²⁴

According to the Italian National Institute of Statistics (ISTAT)²⁵ report of 2007, partners are responsible for the largest part of physical abuse: partners or former partners have committed 70 per cent of the rapes that have been reported. All kinds of abuses are serious, but only 18 per cent of women in the ISTAT sample regard it as a crime, 44 of the interviewed women think of it as something wrong and 36 as something that 'simply happened'.²⁶ In 68 per cent of the cases, violence is perpetrated at home, but aggression and abuse also occur in the street and in cars. Figures show that only 7 per cent of incidents are reported to the police, and that more than one woman out of three remains silent on

²¹ Such as hitting, kicking, biting, shoving, restraining, slapping, throwing objects, punching, choking, pushing, pinching, pulling hair out, burning, strangling and other types of contact that result in physical injury to the victim. Physical abuse can also include denying the victim medical care when needed, depriving the victim of sleep or other functions necessary to live, or forcing the victim to engage in drug/alcohol use against his/her will.

²² Sexual abuse is any situation in which force or threat is used to obtain participation in unwanted sexual activity. Coercing a person to engage in sexual activity against their will, even if that person is a spouse or intimate partner with whom consensual sex has occurred, is an act of aggression and violence. Categories of sexual abuse include also attempted or completed sex acts involving a person who is unable to understand the nature or condition of the act, unable to decline participation, or unable to communicate unwillingness to engage in the sexual act, because of underage immaturity, illness, disability, or the influence of alcohol or other drugs, or because of intimidation or pressure.

²³ Denying the victim access to money or other basic resources and necessities. The motive behind preventing a spouse from acquiring resources is to diminish the victim's capacity to support him/herself, thus forcing him/her to depend on the perpetrator financially, which includes preventing the victim from obtaining education, finding employment, maintaining or advancing their careers and acquiring assets.

²⁴ Emotional abuse can include verbal abuse and is defined as any behaviour that threatens, intimidates, undermines the victim's self-worth or self-esteem, or controls the victim's freedom: controlling behaviour, intimidation, humiliation, harassment, domineering, damage to property, threats, social isolation, stalking, constant criticism, name-calling, blaming, ridicule, falsely accusing, disrespect, denial and any other conflicting actions or statements which are designed to confuse and create insecurity in the victim. Degradation in any form can be considered psychological abuse. Such behaviour leads the victims to question themselves, causing them to believe that the abuse is their fault, leaving them feeling helpless and unable to escape the situation. Women or men undergoing emotional abuse often suffer from depression, which puts them at increased risk of suicide, eating disorders, and drug and alcohol abuse.

²⁵ ISTAT is a public research organisation. It has been present in Italy since 1926, and is the main producer of official statistics in the service of citizens and policy-makers.

²⁶ The sample size was of 25,000 women aged between 16 and 70.

being wronged. As a consequence of missing reported abuse, of the complexity of gathering meaningful information on case numbers, case outcomes and compilation of statistics with challenges mostly due to issues of confidentiality, the dark number is estimated to be around 92 per cent of cases.

Although domestic violence accounts for between 16 per cent and one-quarter of all recorded violent crime, not all forms of domestic violence are illegal. For example, harassment, assault, criminal damage, attempted murder, rape and false imprisonment are crimes, whereas some forms of emotional abuse are not defined as crimes. Nevertheless, these types of violence can also have a serious and lasting impact on a woman's or a child's sense of wellbeing and autonomy.

Alcohol consumption and mental illness can be co-morbid with abuse, and present additional challenges in eliminating domestic violence. Awareness, perception, definition and documentation of domestic violence differ widely from country to country, and from era to era. In this regard the director of one of the visited antiviolence centres argues that in Italy violence is a cultural problem. Until 1996, there did not exist a law against sexual violence, and men were not punished if they were sexually abusing women. Court hearings for custody of their children are still under way in the majority of the cases, and as a result many women prefer not to show their faces.

In sum, violence against women is globally acknowledged as a basic human rights violation and a development issue with severe consequences to economic growth. Indeed, the estimated direct and indirect, human and monetary total cost²⁷ of domestic violence to individuals, households, the Italian government and society is enormous.²⁸

Domestic violence is a complex problem, which may take place within very different societal contexts. There is no one strategy that will work in all situations, since the degree to which a community sanctions it will naturally influence the kind of strategy needed. Besides, considering the interconnections between the factors responsible for domestic violence – gender dynamics of power, culture and economics – strategies and interventions should be designed within a comprehensive and integrated framework.²⁹

²⁷ This is the cost to the criminal justice system, to social services, housing costs, the cost of physical healthcare treatment, of treating mental illness and distress, and of civil legal services.

²⁸ ISTAT, *Report 2007*; Unicef/Innocenti Research Centre, *Innocenti Digest*.

²⁹ On a global understanding of domestic violence and barriers to legal aid services, and access to justice for discrimination complainants, see Rosemary Hunter's work, notably *Domestic Violence Law Reform and Women's Experience in Court: The Implementation of Feminist Reforms in Civil Proceedings* (New York, 2008).

Reshaping the Meaning of Legality

Findings suggest that jurist women often deploy legal meanings in new settings, more so in cases of domestic violence. As domestic violence may comprise a number of different behaviours and consequences, it is not included in the Italian Penal code as an explicit crime on its own. Consequently, to persecute the behaviour labelled as domestic violence, lawyers need to make use of other types of crime; they have to appeal and refer to a set of legal paradigms and rules both general and specifically enacted to fight gender violence.³⁰

To illustrate the different processes of 'creating legality' by jurist women, I selected as analytical tools the three key dimensions mentioned above: before the law, with the law and against the law. I will limit myself to reporting only one example of each narrative.

Before the Law

According to this pattern the law is perceived, represented and depicted as something magisterial and remote, hardly available to common people.

This pattern refers for example to all cases of intimate partner violence in which women do not want to report the crime to the authorities. Especially when there are minor children, women face many challenges that stop them from doing so. In general, abused women do not find the courage to proceed against their abusers and/or enforce their rights, because of their lack of legal consciousness and trust in the law with its slow procedures.³¹ In the Marche region, furthermore, there are no institutional facilities to really protect women: in this region counting more than 1,560,000 inhabitants, there is only one so-called secure-house situated in Ancona, the regional capital, to keep women and children safe from further abuses and violence. This contributes to the fact that many of these women think they have neither the chance nor the ability to utilize the legal system and structures to their advantage. Consequently, abusive behaviour, which takes place within the private sphere of the home, often

³⁰ Art. 29 of the Italian Constitution (family protection and safeguard), Title XI (Articles 556 to 574 – crimes against family) and XII (Articles 575 to 623 bis – crimes against individuals) of the Italian Penal code; Art. 283 of the Italian Code of Civil Procedure. Regarding the latter kind of rules, I refer to the Law n.66/1996 on sexual abuse and violence, the Law n.154/2001 concerning abusive relationships, Art. 612 bis of the Italian Penal code (introduced by the Law 38/2009) that punishes the crime of stalking.

³¹ About the variability in women's legal consciousness in matters of sexual harassment as well as in their belief that law can help them, see: Sandy Welsh and Jayne Baker, 'To Report or Not? Legal Consciousness and Women's Decisions to Report Sexual Harassment' (American Sociological Association Annual Meeting, Montreal, 2006), www.allacademic.com/meta/p103411_index.html.

remains 'invisible', underreported and underestimated in the official statistics. That is why social scientists time and again fight against the 'dark number' of domestic crimes of all sorts. In this regard, both lawyers and laywomen agree in affirming: 'As a general rule, abuses and violence rarely emerge and, in any case, only when judicial separation or divorce have occurred' (A.E., 50-year-old female lawyer).

Since, as I explained before, Italian legislation is quite silent on rules or provisions on domestic violence, this pattern also refers to cases in which informal means of social control, either community or neighbour related, get activated 'before the law', or in cases in which lawyers make innovative use of existing legal paradigms in order to persecute abusive behaviour in particular circumstances. Let me give an illustration of both cases in the following one example.

The husband of a Tunisian woman living near Fermo had for a long time been beating and insulting his wife (he forced her to work illegally at home for a local shoe factory without giving her money), leaving her without healthcare (though she was in need of gynaecological treatment) and locking her up in the house. After continually hearing screams, cries and moans, yet never seeing or meeting the woman, the neighbours called the local social services. When they arrived, the woman could not open the door because she was locked up inside and had no key. In order to get the husband convicted, according to the statement of the Sentence of the Penal Court of Cassazione (Supreme Penal Court) n. 3368/2005, the lawyer successfully used the crime of 'reducing somebody to servitude' as defined in Art. 600 of the Italian Penal code (*Riduzione o mantenimento in schiavitù o servitù* – enslaving or reducing somebody in servitude).³²

With the Law

According to the 'with the law' pattern, the law is perceived, represented and depicted as a game with rules that can be manipulated to one's advantage. This is the case whenever laypeople or legal professionals defend interests and rights by using existing law and legal procedures.

Most lawyers in the sample declared that they often had strategically used abuse complaints to achieve major legal outcomes.

One enlightening example goes as follows: after five years of marriage, a man began beating his wife, insulting and harassing her, even during pregnancy. At first, she minimized the importance and significance of her husband's conduct and limited herself to confiding it to two intimate friends.

³² This article has been modified by the Law n. 228/2003 (*Misure contro la tratta di persone*), which has added to the original topic of 'enslaving' a similar yet less serious course of action, that of 'reducing somebody to servitude'.

But following subsequent episodes of humiliation and violent behaviour in front of friends, her parents and their underage children, the woman decided to make a complaint against her husband and to leave the family home with the children, taking refuge at her parents'. In order to get a consensual legal separation – her husband promised to never do it again – she decided to withdraw her complaint against him. Yet shortly after the separation decree, her now ex-husband not only continued his intimidation and verbal abuse in person and on the phone, but he even applied to modify the terms of the legal separation – Art.710 of the Italian Code of Civil Procedure (Modificabilità dei provvedimenti relativi alla separazione dei coniugi) – in order to obtain joint custody of their children. Consequently, the woman was compelled to complain again and to request a restraining order against this man who also did not respect the separation agreements: he neither paid the children's maintenance nor returned his wife's personal belongings and furniture.

At that point the lawyer used the complaints presented by the wife before as well as after their legal separation to show how the man's petition was only a way not to pay alimony and, therefore, how he was absolutely inadequate to properly care for, educate and raise the children. His violent, harmful and persistent conduct was considered not only as prejudicial to the mother's health, safety and dignity, but also to that of the children.

The mother won the case and the judge – applying the interest of the minors as per Art. 155 bis of the Italian Civil code as amended by Law 54/2006 (Affidamento condiviso) – assigned her their sole custody.

Against the Law

According to this pattern the law is perceived, represented and depicted as an ideological and arbitrary power, which is employed as a medium for unfairness, persecution and discrimination. As such, the law should be actively resisted.

In relation to this, I would like to present an interesting case referred to by an aged female lawyer. It shows how, even when the law seems to protect them, women are often disregarded and devalued.

The story is that of a battered woman who killed her abusive male partner. For more than 10 years the woman had been beaten time after time when her husband returned home drunk. She was often experiencing severe injuries, together with mental, emotional and verbal abuse. The woman made repeated but failed attempts to enlist the help of law enforcement agencies against this situation. She did obtain a protection order that temporarily excluded the man from their home, but as violation of such orders are not punished severely, the man returned home to intimidate and assault his partner once more. This woman and her two sons (who were trying to defend their mother) had just been beaten when the violence escalated and the homicide occurred. The

woman stated she had the impression that their lives were in danger and that her killing was unplanned yet reasonable because in self-defence. After the event the woman was arrested, jailed and ordered by jail staff to take mood-regulators, sedatives and anti-depressants. These drugs, inhibiting clear thinking, directly interfered with her ability to make reasoned decisions and to participate and follow the course of her own trial.³³ Her lawyer appealed on the grounds of self-defence, and provocation was effectively accepted as an extenuating factor; but the extenuating factor came in a form that pathologized the defendant: rather than explaining the homicide as this woman's necessary choice to save her own life and that of her sons, she was labelled as 'helpless' and affected by 'battered woman syndrome'.³⁴ Women offenders following abuse are almost always treated as having a mental disorder, even if this is not the case. If it is true that such a 'syndrome' provides a commonly used framework granting a fair trial, its judicial and public perception as a form of incapacity nevertheless reveals that, despite the purpose for which this legal strategy was conceived, old stereotypes are reproduced in a new form.³⁵

Although Battered Woman Syndrome (BWS) is intended to describe the experience of women who have been battered and abused by their intimate partner and their response to such violence, the use of 'syndrome' language, defined essentially as a mental disorder, helps to create an image of pathology that can stigmatize the defendant unnecessarily and inaccurately. Diagnosis is often used as a justification in support of self-defence when the defendant in a criminal case is a woman who has experienced domestic violence, to negate the specific intent element of a crime. But, as far as it is based on an analysis of the

³³ In accordance with the feminist scholar Dermody Leonard, the interviewee thinks that the overuse of mood-altering drugs is a form of institutional victimization that continues the silencing of abused women (S.B., 68-year-old female lawyer). See: Elizabeth Dermody Leonard, *Convicted Survivors: The Imprisonment of Battered Women Who Kill* (New York, 2002).

³⁴ Battered Woman Syndrome is a notion introduced in the 1970s by psychologist Lenore E. Walker ('Battered Women and Learned Helplessness', *Victimology*, 2/3–4 (1977): pp. 525–34). It has evolved from a term used to describe a broad range of victims' (such as learned helplessness) and abusers' (such as violence cycles) reactions, to a mental health disorder. It is often used to explain experience and reaction patterns of women who have been battered and abused by their intimate partners. Although individual women respond to domestic violence differently, a number of reactions are common among those who have been exposed to these traumatic events (see Lenore E. Walker, 'Battered Woman Syndrome: Empirical Findings', *Annals of the New York Academy of Sciences*, 1087 (2006): pp. 142–57). It can explain behaviour that might be difficult for judges to understand, such as why survivors do not leave; why they act emotionally unaffected after shootings; why a woman returns to an abuser after separation or fails to call the police and so on.

³⁵ Lenore E. Walker, 'Battered Women Syndrome and Self-Defense', *Notre Dame Journal of Law, Ethics & Public Policy*, 6/2 (1992): pp. 321–34.

victimization dynamic only, excluding information about women's strengths – including responsibility (such as taking care of her children, providing economic resources to her family), agency (making decisions to protect herself and her children from violence and abuse) and capacity (competence to act independently and endurance to continue functioning in the face of great adversity) – it can be both misleading and potentially harmful. In fact, when the expert focuses his or her evaluation on this question, the result is an analysis of those factors that support or fail to support the reasonableness of the defendant's perception of immediate danger, given the circumstances. The focus is on the woman's internal psychological state, not on external events to explain the perception of threat posed by the abuser's behaviour. If a woman's behaviour is not understood in the full context of her life, important decisions in a legal case can be incorrectly influenced by stereotypes or assumptions about how or why women who are battered behave the way they do. Indeed, even when mental health problems and depression result from violence and abuse and influence a woman's decisions, they are usually only a part of it; how an individual woman experiences or reacts to being battered will vary depending on her psychological, social, cognitive profile and on practical circumstances.

It has been argued that battered women who kill their abusers represent a special class of defendants being unfairly treated in the legal system: criminal justice often fails to respond to abused wives, in many cases leaving women without protection, while punishing them for protecting themselves and their children.³⁶ Yet, it is now increasingly recognized that BWS often evokes a stigmatizing image of pathology, which may affect the whole decision-making process. This image runs counter to the self-defence argument that the defendant's perception of immediate danger was reasonable for someone in her circumstances, and therefore that her actions were justifiable under the law. It is difficult to argue that a defendant who is viewed as flawed, damaged, disordered or abnormal by virtue of a mental health diagnosis should be justified in her actions based on the reasonableness of her perceptions.³⁷

To sum up, in the courtroom the use of BWS by those with scientific knowledge and specialized experience with domestic violence fails to serve those who demand and deserve the very best: judges and, ultimately, women who have endured domestic violence. Its use persists, in part, because it conveniently packages in a single phrase a far more complex issue,³⁸ but obviously fails to treat the female defendant as a self-respecting person.

³⁶ Dermody Leonard, *Convicted Survivors*.

³⁷ Mary Ann Dutton, Sue Osthoff and Melissa Dichter, *Update of the 'Battered Woman Syndrome' Critique* (2011), <http://www.vawnet.org>.

³⁸ Bess Rothenberg, 'The Success of the Battered Woman Syndrome: An Analysis of How Cultural Arguments Succeed', *Sociological Forum*, 17/1 (2002): pp. 81–103; Bess

The Impact of Legal Knowledge and Practice on Jurist Women's Personal Lives

As far as the impact of legal knowledge on jurist women's personal lives is concerned, outcomes indeed suggest that legality deeply contributes to building these women's social and professional identities. According to many female jurists, their access to the legal profession and their consciousness about legal norms have changed their ways of thinking about situations, behaviours and relationships: 'Legal knowledge is like a filter, that is, a *forma mentis* through which meanings, speeches, social and cultural practices, happenings, and so on, are read, understood and managed in the light of legal categories and concepts' (C.P., 45-year-old female lawyer).

In accordance with the theories and findings of many authors – such as Patricia Ewick and Susan Silbey, Austin Sarat and Thomas Kearns³⁹ – some of the jurist women I interviewed, and lawyers in particular, agreed in affirming that: 'In everyday locations, I make sense of my experiences by relying on legal categories and concepts, even though these may not be in accordance with the details of formal rules and regulations' (E.S., 60-year-old female lawyer).

The awareness of the legal consequences – sometimes really serious ones – of any kind of behaviour makes them more fearful and constantly on their guard, more so than other mothers are with their children, mostly when they are teenagers:

I always advise and urge my husband, parents and relatives, especially my teenage sons, to be cautious in making decisions, to reflect on the legal consequences before acting ... to be compliant with the legal system every time. This is the only way to prevent damage and harm to oneself and others. (M.T., 50-year-old female lawyer)

An interesting matter is the fact that jurist women seem to be well aware of the difference between risk and danger, more so than other women.⁴⁰ And they agree in considering the law as a powerful means of control and reduction of

Rothenberg, 'We Don't Have Time for Social Change: Cultural Compromise and the Battered Woman Syndrome', *Gender & Society*, 17/5 (2003): pp. 771–87.

³⁹ Ewick and Silbey, *The Common Place of Law*; Austin Sarat and Thomas R. Kearns (ed.), *Law in Everyday Life* (Ann Arbor, 1995); Anna Maria Marshall and Scott Barclay, 'In Their Own Words: How Ordinary People Construct the Legal World', *Law & Social Inquiry*, 28/3 (2003): pp. 617–28.

⁴⁰ According to Luhmann's 'risk theory', we can use the concept of danger when we think that damage, losses and unsuccessful events come from the environment or have some external reasons. The concept of risk can be used when we assume that problems, damage or unsuccessful events are due (brought about) to our inadequate decision-making processes. Niklas Luhmann, *Risk: A Sociological Theory* (New Brunswick, NJ, 2002).

risks: 'As a general rule, to prevent risk and danger, I seek to follow, in both my private and in my working life the three Rs principle: Responsibility for one's own behaviour, self-Respect and Respect of other people' (58-year-old female judge).⁴¹

Moreover, legal practice and culture helps them to understand the common sense notions of legal justice: 'Act within the law and you are never wrong! – this is my motto' (52-year-old female judge).

Paradoxically, they think it is precisely their legal knowledge which helps them to criticize what can be seen as the selfishness of the legal profession, and develop a thoughtful set of suggestions as to how the legal order and lawyers might redirect their thinking to be more in line with public interest. Most of the interviewees stated their inability (in the sense of unwillingness) to ask poor clients for money, and the following belief: 'A litigation strategy can be successful even if it fails to win the case, when it contributes to building awareness on issues of gender discrimination and violence against women and children' (P.C., 51-year-old female lawyer).

Women Lawyers' Attitudes and Difficulties

Women's access to the legal profession has been accompanied by an increasing gender specialization, either in family and juvenile or migration law.⁴² This is called 'horizontal discrimination' and comes from the stereotyped image of women as more suited to emotional relations and affection. At the same time, women are generally excluded from important financial and political cases. Yet male lawyers often attribute this situation more to women's will and aptitude rather than to real professional segregation: 'I think women lawyers are effectively more willing to deal with family matters: they are more attentive, more patient and more intuitive than men' (S.G., 55-year-old male lawyer).

Our findings indeed show that female lawyers are keener than their male colleagues to specialize and acquire appropriate qualifications and training in juvenile law; to pay attention to psychological issues and factors; to participate in meetings; and to gather information and understanding about their underage clients.

Most female lawyers interviewed did not seem to live this situation as a case of discrimination. In fact, most of them thought they were 'more inclined and ready to bring the right arguments in the name and voice of those who are outsiders to the system of male privilege' (P.D., 67-year-old female lawyer).

⁴¹ As the judges have agreed to grant interviews provided they could retain their anonymity, their quoted statements are not supported by reference to the interviewees' initials.

⁴² Centro Studi Investimenti Sociali, *Dopo le buone teorie*, p. 34.

But I also collected accounts from jurist women stating: 'We are always cut off from the top management, from the upper spheres, from wealthy and profitable disputes' (M.T., 50-year-old female lawyer) and: 'Throughout my entire life I have witnessed that whenever you find a woman in leadership and in prestigious roles you can bet she is tied to a successful and powerful man: father, husband, brother, partner or colleague' (F.P., 70-year-old female lawyer).

When speaking about women's understanding of their profession and its requirements – their representation of the ideal lawyer, their motivation to become a lawyer, the way they experience the power they wield, the existing gender differences and similarities in values and attitudes – my research outcomes suggest that women lawyers consider themselves to be more patient than their male colleagues, more willing to listen to clients when they want to show their feelings and open their hearts. Consequently, they think they are more able than men to understand their clients' needs, hopes and wishes. Besides, even after litigation is concluded, their relationships with clients often continue:

We [women lawyers] are more tolerant and empathetic, more willing to listen and to explain ... (L.C., 37-year-old female lawyer)

Women – you know – are generally very good at making people feel comfortable. And feeling at ease is very important for all kinds of clients, especially abused women. They must feel you understand and share pity and sorrow, their request for dignity and justice, their wish to obtain protection and safeguard. (L.B., 40-year-old female lawyer)

I strongly believe that in family matters the lawyer's commitment should be not to worsen and deepen the conflict, but to dim and settle the dispute as quickly as possible, in order to protect minors from an increase of ongoing hostility, aggression and violence between parents. (G.C., 51-year-old female lawyer)

Devoting oneself to family law and disputes allows for a conciliation of professionalism and social commitment. That means acting in conflict resolution always looking at the interests of the minors. (S.B., 52-year-old female lawyer)

Members of the judiciary do recognize that domestic violence exists and has to be prevented through law. In this regard, the judges that I interviewed also stated: 'In general female lawyers – at any level – are more careful than their male counterparts to attend to all the details of an ongoing case with detailed descriptions, clarity of exposition and fine psychological observations' (50-year-old male judge).

The clients interviewed – whether plaintiff or defendant – agreed in stating: 'Women are better than men at understanding the fine psychological aspects of any question, particularly in the case of family or personal matters' (F.B., 55-year-old male plaintiff).

The abused and raped women in the sample seemed to hold the same opinion, too:

Female lawyers with their empathetic attitude and their sharp minds have given me moral support and legal ground to find the courage to report the crime. (V.B., 43-year-old battered woman)

Only another woman can understand my feelings, emotions, humiliation and suffering ... I never should have gone to see a male lawyer! (M.V.S., 35-year-old raped woman)

In the struggle to balance their work and family,⁴³ career and affections, jurist women complain about the lack of family-friendly policies in the legal profession, about institutional impediments, economic discrimination, unsuitable court schedules and 'glass ceiling' mechanisms:

Women lawyers have increased ... that's right! ... Yet, it's not a secret that women still face daunting obstacles to succeed in the legal profession! (M.M., 50-year-old female lawyer)

I suffered adverse career consequences in my struggle to meet work and family needs. (S.B., 40-year-old female lawyer)

I wish for a working life that allows me to have a satisfying home life as well. But often we [women] don't have the power and skill to negotiate that. For example to compel male colleagues to rethink the long-hours culture.⁴⁴ (M.T., 34-year-old female lawyer)

To resolve competing notions of appropriate social roles and to balance the demands of work and family, women are more inclined towards the care of children and, in general, the quality of life. (50-year-old female judge)

In this regard, I can report the experience of Fernanda Contri (the first Italian woman to preside over a public session of the Constitutional Court in 2005), constitutional judge from 1996 to 2005. During an interview, she said: 'As far back as the 70s, I asked a chief judge to use a room inside the court for childcare and baby-sitting. But I was silenced with this answer: "courts are sacred places, and the law is something serious!"'

Actually, not much seems to have changed. Today in the whole of Italy there exist only five nurseries and day-care centres in law courts (in Rome, Florence, Pescara and Syracuse).

⁴³ Rhode, 'Balanced Lives'.

⁴⁴ See Michael Moller, 'Exploiting Patterns: A Critique of Hegemonic Masculinity', *Journal of Gender Studies*, 16/3 (2007): pp. 263–76.

Fortunately, many law firms are beginning to recognize these difficulties and are now offering a variety of employment options, including flexible and part-time, as a valuable tool in the fight for talent and skills, without jeopardizing career paths. At the same time, equal opportunity commissions as well as national and local jurist women associations work to break through institutional impediments. Yet, to fit happily and successfully into the legal profession, women face additional challenges: 'When we work in firms, we have to show all the time that we are dedicated and willing to work hard' (P.C., 37-year-old female lawyer).

Despite the fact that jurist women often graduate with better marks than men or pass their professional qualifying examinations more easily, they still earn less.⁴⁵ Furthermore, law schools often do not prepare graduates enough for practice; firms, for their part, often fail to mentor young lawyers, forcing them into a hourly billing system⁴⁶ that undermines home and family lives, encourages fraud and emphasizes marketing over legal expertise.⁴⁷ Although hourly billing was originally justified in part because of its simplicity and objectivity, it has received its share of criticism from within and without the profession.⁴⁸ Interviewees using this computational method affirmed to be very tired and uneasy about taking vacations for fear of not meeting billing expectations. According to my findings, a high percentage of women in private practices are dissatisfied with the legal profession. In part this dissatisfaction arises from spending too many hours in the office. This eventually takes its toll, both physically and mentally, and inevitably has an impact on other aspects of an attorney's life, especially the little time available for non-professional

⁴⁵ CNF and CSM, *Le donne nelle professioni legali di domani*.

⁴⁶ Hourly billing, as the term suggests, simply compensates the lawyer or the law firm for the number of hours expended on legal services for a client, multiplied by a fixed hourly rate. The widespread use of hourly billing is a relatively recent development in Western countries. Before, Italian lawyers utilized a sort of flat fee schedule approved by court or bar associations, as well as contingency and percentage fees. Yet nowadays, many large firms demand of their new associates to bill for up to around 2,200 hours each year. In order to reach that number, it has been calculated that an associate needs to spend 3,300 hours at the office, in other words over nine hours a day, including weekends and holidays. See William G. Ross, *The Honest Hour: The Ethics of Time-Based Billing by Attorneys* (Durham, NC, 1996).

⁴⁷ Sol M. Linowitz and Martin Mayer, *The Betrayed Profession: Lawyering at the End of the Twentieth Century* (New York, 1994).

⁴⁸ This system allows clients to compare the rates of various attorneys and to know in advance how much they will be charged for time expended, yet it does not recognize extraordinary, priority or emergency services; moreover, the lawyer is not adequately compensated in high-value and high-responsibility matters. Both advantages and disadvantages are developed in Richard C. Reed, *Billing Innovation: New Win-Win Ways to End Hourly Billing* (Chicago, 1996).

pursuits.⁴⁹ Thus, the untenable choice seems to be to work long hours and achieve professional success only at the cost of being uninvolved in one's community and a stranger to one's children and spouse.

Concluding Remarks

Gender-neutral theories presume equality of power in male–female relationships and tend to ignore centuries of male-dominated social systems. Yet in the course of history, the law, as well as the economy, traditional family structures and other social institutions, has systematically supported the authority of men over women, sometimes legitimizing and perpetuating violence against women.

Over the last decades, in turn, major social, legal and cultural changes have improved the feminine condition in the sense of decreasing direct discrimination between men and women. Notwithstanding the fact that the general normative European framework is calling for such a transformation, especially in the light of the general principles of 'equal opportunity' and 'non-discrimination', both informal and indirect discrimination seem to be still deeply entrenched in (Italian) society and in its legal system.

After more than 30 years of feminist legal theory and jurisprudence,⁵⁰ socio-legal scholars and researchers continue to debate the impact of women's presence in legal practice and scenarios for a prospective gender-oriented professional agenda, enabling European women lawyers' voice to be heard.⁵¹

As the extracts of interviews and narratives quoted above clearly show, jurist women often experience discrimination twice, both inside and outside the courtroom.⁵² Although sometimes they find some key supporters among male colleagues and a few of them do experience success stories, jurist women suffer from an invisible closure preventing them from upward professional mobility.⁵³ Most of the women in this research sample felt they had, more and better than men, to prove that they were serious, professional and trustworthy. Moreover, balancing the demands of work and family, they experience the stress of combining multiple tasks and responsibilities. My findings suggest that in their professional lives, the law provides cultural patterns that jurist women use

⁴⁹ Jeremy Holmes, *Hourly Billing: A Guide for Law Students*, <http://www.uiowa.edu>.

⁵⁰ Nicola Lacey, 'Feminist Legal Theory', *Oxford Journal of Legal Studies*, 9/3 (1989): pp. 383–94.

⁵¹ Vittorio Olgiati, 'On the Women Lawyers' Voice in Europe: Scenarios for a Legal Education Agenda', in Josef Langer (ed.), *Analysis and Visions for Europe* (Frankfurt, 2011), pp. 127–48.

⁵² Slotkin and Goodman, *It's Harder in Heels*.

⁵³ Celia Davies, 'The Sociology of Profession and the Profession of Gender', *Sociology*, 30/4 (1996): pp. 661–78.

not only at work but also to understand their everyday life and that of other women, especially when dealing with women victims of gender violence and domestic abuse. Dealing with such problems and crimes, women's legal strategies reveal the aim and effort to challenge the prevailing gender bias, stereotypes and discrimination.

As we have seen, female lawyers do tend to think that a litigation strategy is successful whenever it contributes to building awareness of gender issues: for example, by highlighting how women offenders are still pathologized, or by contributing to the legal qualification of domestic violence against women and children as a violation of human dignity and human rights.

Gendered legal expertise produces material and symbolic effects in the overall functioning of the socio-legal field. Just as jurist women play a fundamental role in the global understanding of domestic violence, they also have an important part in the demand for appointing women in leadership roles, and in supporting gender mainstreaming policy: all issues granted in theory, but not often enforced in practice.⁵⁴

In this chapter I summarized the main findings of individual experiences and viewpoints gathered in the field. They show how the law often fails to protect women and how the empowerment of women through the law is still a long way from freedom, dignity and social justice.

Yet, in their attempts to spread awareness of legal rights among women, children and immigrant people, jurist women transform themselves, their working space and the wider society of which they are part. Women's access to the legal profession has indeed affected legal scholarship and jurisprudence. Thus, according to Hanne Petersen's theory about the so-called 'home knitted law',⁵⁵ we effectively witness the rise of intuitive-unofficial legal practices, where values like bargaining, sympathy, sharing and solidarity are more and more widespread. Legality, however, does not reside exclusively in the individual's ideas and attitudes, and legal consciousness is not a static set of opinions and thoughts; it is instead contingent and changeable, insofar as it is the result of the individual's 'participation in the process of constructing legality'.⁵⁶

For this reason, the jurist women interviewed in this chapter believe it is important to explore and practise new ways of incorporating human rights awareness and values into people's daily life, even through the creative use of media, art and culture. As one member of an Italian jurist women's association said: 'Our true plan is to build a better world for all women, not just for ourselves!'

⁵⁴ Lauren S. Rikleen, *Ending the Gauntlet: Removing Barriers to Women's Success in the Law* (New York, 2006).

⁵⁵ Hanne Petersen, *Home Knitted Law: Norms and Values in Gendered Rule-Making* (Aldershot, 1996).

⁵⁶ Ewick and Silbey, *The Common Place of Law*, p. 45.

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